

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesselstine**

Hearing Date and Time: June 18, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name Case Number	Tentative
1.	<i>Renner vs. Leuck</i> 2026-01553475	Before the court is the petition of petitioner Robert K. Renner (Petitioner) to confirm attorney-client fee arbitration award. As more fully set forth below, the petition is CONTINUED TO THURSDAY, AUGUST 27, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Petitioner to file an amended petition making all required showings needed to confirm a contractual arbitration award. By this petition, Petitioner seeks to confirm the arbitration award against respondent Peter Leuck (Respondent) that Hon. Elizabeth R. Feffer (Ret.) issued from the parties' arbitration held on December 12, 2025. The award is dated February 2, 2026. Although the arbitration involved an attorney-client fee dispute arising from Petitioner's representation of Respondent in earlier litigation and Respondent's failure to pay Petitioner the agreed upon fees, the arbitration was conducted as a contractual arbitration not a mandatory fee arbitration under the Mandatory Fee Arbitration Act (Bus. & Prof. Code, § 6200, et seq.). In filing the petition, Petitioner used the Judicial Council Form Petition that is used to confirm arbitration awards that become binding pursuant to the terms of the Mandatory Fee Arbitration Act. Indeed, section 6 of the form requires

		the petition to check the box stating the grounds on which the award became binding—i.e., by subsequent agreement of the parties or because no party requested a trial de novo within 30 days. Moreover, arbitrations under Mandatory Fee Arbitration Act generally are conducted through a local bar association or the State Bar; they are not conducted through private arbitration providers like ADR Services, Inc., which was the arbitration provider in this case. The arbitration award Judge Feffer issued makes clear the arbitration was conducted pursuant to an agreement to arbitrate, not the Mandatory Fee Arbitration Act. At page 2 of the award, the first sentence under the heading “III. Jurisdiction and Relevant Procedural History” reads as follows: “This matter is set forth to binding arbitration pursuant to the parties’ Engagement Agreement and Fee Contract (Exhibit 1, ¶ 8.).” Code of Civil Procedure section 1285.4 sets forth the essential terms of a petition to confirm a contractual arbitration award as follows: “A petition under this chapter shall: [¶] (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any.” Although Petitioner’s petition identifies the arbitrator and attaches a copy of her award, it does not set forth the substance or attach a copy of the agreement to arbitrate that Judge Feffer identified as the basis for the arbitration award. Based on the foregoing, the hearing is CONTINUED as set forth above. Petitioner is ordered to forthwith file an amended petition, using Judicial Council Form ADR-106, entitled Petition Confirm Contractual Arbitration Award, and provide all information required to confirm a contractual arbitration award. The amended petition also must be timely served on Respondent. Petitioner is ordered to give notice of this ruling and the continued hearing date.
2.	<i>Xie vs. Chang</i> <i>2025-01481320</i>	Before the court is the continued hearing on the petition of petitioners Shuchun Xie and Zixuan An (collectively, Petitioners) to confirm a contractual arbitration award against respondents Emerald Monkey, LLC, Emerald Dragon, LLC, Alan Tsai, Edward Manolos, and Henry

Chang (collectively, Respondents). The petition is **DENIED WITHOUT PREJUDICE.**

This is the fourth time Petitioners have come before this court on this petition. The hearing has been continued four times over the last thirteen months due to repeated and ongoing service issues. (ROA 14, 38, 49, 56.) The court has specifically pointed out in three of the prior rulings what is necessary to complete service, but Petitioners and their counsel have continuously failed to correct those issues each time. (ROA 14, 38, 56.) Since the last hearing on March 19, 2026, Petitioners have made no filings to update the court or otherwise demonstrate their efforts to properly effectuate service. Petitioners have been afforded many opportunities and many months to address the service issues, but have failed to do so, and have not demonstrated any efforts since the last hearing.

For future reference in connection with any future filing, the court again explains the multiple deficiencies in Petitioners' service. Code of Civil Procedure section 1290.4 governs the services requirements for a petition to confirm an arbitration award and provides as follows:

"(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

"(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision:

"(1) Service within this State shall be made in the manner provided by law for the service of summons in an action.

"(2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the equivalent of such service by mail. Proof of service by mail shall be made by affidavit showing such mailing together with the return receipt of the United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision

	of this title, if service is made in the manner provided in this paragraph, the petition may not be heard until at least 30 days after the date of such service.” The arbitration agreement among the parties does not appear to provide a means of service and none of Respondents have previously appeared in this case. Accordingly, the petition to confirm the arbitration award must be served in the same manner as a summons. As the court noted in its August 7, 2025, ruling, Petitioners filed proofs of service showing the petition and related documents were served on respondents Emerald Monkey, LLC and Emerald Dragon, LLC, which appear proper. (ROA 10, 12, 14.) After the initial hearing on August 7, 2025, Petitioners filed a proof of service stating they served Messrs. Tsai and Manolos by electronic mail to their alleged attorney. (ROA 18.) Again, however, there remained no showing counsel was authorized to accept service of process on behalf of Messrs. Tsai and Manolos or that electronic mail service is sufficient. The court repeated this concern at the continued hearing on the petition on November 6, 2025, and again on March 19, 2026. (ROA 38, 56.) Petitioners still have failed to provide the court with evidence service in this manner was proper as to Messrs. Tsai and Manolos. As for respondent Henry Chang (Chang), after the court denied two prior applications by Petitioners for service by publication due to insufficient efforts of other means of service on Chang and incomplete declarations on the part of counsel (ROA 28, 38), the court granted the most recent application on December 31, 2025. (ROA 49, 50.) In the order granting that application, the court continued the hearing on the petition to March 19, 2026. Despite notice of the ruling being served on counsel for Petitioners regarding the hearing date of March 19, 2026, the proof of service by publication indicated the prior and incorrect hearing date of February 5, 2026, was published. (ROA 54.) The incorrect date in the published proof of service did not provide Chang with the proper hearing date or ability to oppose the Petition should he so choose. When the court continued the March 19, 2026, hearing, it permitted Petitioners to serve Chang notice of the present hearing date by publication. Instead, Petitioner emailed Chang, which is improper.
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		Based on the multiple prior continuances and ongoing service issues, the court denies the petition without prejudice. Petitioners to give notice.
3.	<i>Omega Accounting Solutions, Inc. vs. Bonanno Investment Enterprises, Inc.</i> 2026-01542344	Before the court is the petition to confirm arbitration award filed by petitioner Omega Accounting Solutions, Inc. (Petitioner). As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE. The petition previously came on for hearing on April 30, 2026. Prior to that hearing, the court posted a tentative ruling to continue the petition to today's date but on various deficiencies, including the failure to properly serve respondent Bonanno Investment Enterprises, Inc. (Respondent). At the hearing, the court adopted the following as its final ruling" "Before the court is a petition to confirm arbitration award filed by petitioner Omega Accounting Solutions, Inc. (Petitioner). For the reasons set forth below, the petition is CONTINUED TO JUNE 18, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for proper service and proof thereof. "The arbitration agreement is silent as to the manner of service of the petition and notice of hearing. Respondent Bonanno Investment Enterprises, Inc. (Respondent) has not previously appeared in the proceeding. The petition and notice of hearing must, therefore, be served on Respondent in the same manner as service of a summons. (See Code Civ. Proc., § 1290.4.) Although the notice of hearing on the petition was properly served by personal service on Respondent's registered agent (see ROA 13), there is no proof of service showing proper service of the petition on Respondent. The proof of service for the petition shows the petition was served on Respondent by mail on January 22, 2026, which is not an appropriate method of service. (See ROA 2; Code Civ. Proc., § 1290.4.) "In addition, the petition does not set forth the date when the arbitration award was served upon Petitioner. Although the petition shows compliance with Code of Civil Procedure section 1288, it is unclear whether the petition complies with the requirements of Code of Civil Procedure section 1288.4, which states no petition may be served and filed 'until at least 10 days after service of the signed copy

		of the award upon the petitioner.’ (Code Civ. Proc., § 1288.4. “The court therefore CONTINUES the hearing as stated above to allow Petitioner an opportunity to remedy these issues. “Any supplemental filing and proof of service are to be filed at least five court days before the hearing. “Counsel for Petitioner is ordered to give notice of this ruling.” Petitioner has not filed any notice of the court’s prior ruling nor has Petitioner filed anything to address the deficiencies the court pointed out in its prior ruling. The court ordered any such filings to be made at least five court days before today’s hearing, and petitioner failed to do so. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE. Petitioner’s counsel is ordered to give notice of this ruling.
4.	<i>In Re: Shepard Douglas, LLC</i> <i>2026-01559770</i>	Before the court is the petition of petitioner Shephard Douglas, LLC (Petitioner) for court approval of the proposed transfer of certain periodic payments real party in interest and payee Lucila Barocio (Payee) is scheduled to receive under a structured settlement. As more fully set forth below, the hearing on the petition is CONTINUED TO THURSDAY, AUGUST 27, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Petitioner to provide additional information necessary to enable the court to determine whether the required findings can be made. In these proceedings, Petitioner seeks court approval for Payee to transfer one lump sum payment of \$20,000 due February 16, 2028, one lump sum payment of \$30,000 due February 16, 2029, and one lump sum payment of \$40,000 due February 16, 2030. These payments total \$90,000 and have a discounted present value of \$77,892.70. In exchange for transferring the right to receive these monthly payments, Payee would receive a present, lump sum payment of \$45,000, which represents 57.7 percent of the payments’ present value and equates to an equivalent interest rate of 24.7 percent if Payee were to take a loan. The petition does not include all information and documents required by the Insurance Code, including a

		full copy of the annuity contract, a copy of the underlying structured settlement agreement, or a copy of the prior petitions. (Ins. Code § 10139.5, subd. (f)(2)(E), (F), (G).) Payee and Petitioner also have not provided an adequate explanation of their efforts to obtain and provide complete copies of these documents. (Ins. Code § 10139.5, subd. (f)(2)(H).) There also is insufficient information regarding the prior petitions, including the amount of money Payee received, the reasons for pursuing or completing the transactions, whether Payee was satisfied with the previous transactions, whether there were any attempted previous transactions that were denied, dismissed or withdrawn within the past five years, and whether Payee and/or her family is experiencing a hardship situation. (Ins. Code § 10139.5, subd. (b)(10)-(13), subd. (d)(6).) Furthermore, Insurance Code section 10139.5, subdivision (b) requires the court to consider a variety of circumstances, including Payee's financial and economic situation, to determine whether the transfer is fair and reasonable, and in the best interest of Payee. Petitioner and Payee, however, have failed to provide sufficient information for the court to make such a determination. Although Payee states she does not have any minor children or child support obligations, Payee fails to state whether she has any dependents, her means of income other than her annuity and part-time job, and the type and amount of monthly expenses she incurs. Significantly, Payee also fails to state what happened to the funds she received from the prior transactions. That is an important aspect of her economic situation. Moreover, Payee fails to adequately explain how she intends to use the proposed funds, i.e., the amount of accrued debt and how she accumulated the debt, what school or college she attends, and the estimated amount of tuition and supplies. For example, tuition expenses are vastly different at a community college, a private four-year college, and a trade school. The court needs more information about Payee's financial circumstances and a greater explanation about how this proposed transaction is fair, reasonable, and in Payee's best interest before the court can determine whether this transaction can be approved. Accordingly, the hearing is CONTINUED as set forth above and Petitioner and Payee are ordered to file all
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	required documents, additional declaration(s), and any other documents needed to provide the court with the foregoing information and to demonstrate the transaction is fair and reasonable and in Payee's best interest. All filings are ordered to be filed and served at least 20 days before the continued hearing date. <u>Despite the continuance, Petitioner's counsel is ordered to appear for the hearing to address whether the court should issue an order to show cause why monetary sanctions should not be imposed on counsel under Code of Civil Procedure section 177.5 for disregarding the court's prior orders to ensure the payee is properly identified and named as a real party in interest in all petitions counsel files.</u> The court previously provided this admonition to counsel on at least two separate occasions: (1) on June 5, 2025, in the case of <i>In re Assured Management Corporation</i>, case no. 2025-01458602, and (2) on December 18, 2025, in the case of <i>In re: Statutorily Defined Interested Party</i>, case no. 2025-01508513. Specifically, the court admonished counsel to use the complete names of all payees in any future petitions, unless there is a legitimate privacy or other appropriate reason for using a fictitious name and proper procedures are followed. Nonetheless, when counsel filed this case on March 26, 2026, the original petition did not identify Payee by her name or otherwise identify her in any way. Indeed, the original petition did not name Payee, did not include a declaration by Payee, and did not include any of the necessary exhibits that would identify Payee. No basis for failing to identify Payee was offered. Two months later, on May 26, 2026, Petitioner filed a first amended petition that identified Payee and provided the other documents referring to Payee by name. Insurance Code section 10139.5(c)(1) requires every petition for approval of the transfer of structure settlement payments include the payee's name, address, and age. Moreover, Payee is a real party in interest in this case. The failure to identify Payee by her full name in the original petition impedes the ability of the court and other interested parties to verify whether Payee had any prior petitions, and, if so, whether any of them were denied and the reason for the denial. No justification for this failure is provided and it appears to be intentional.
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		<u>Finally, the court directs the clerk to confirm the case title, register of actions, docket, list of parties, and court index accurately reflect Lucila Barocio is the payee and real party in interest in this case, and to the extent necessary, correct those records to accurately reflect the parties to this action.</u> Petitioner's counsel is ordered to give notice.
5.	<i>In re 8860 La Salle St. 4, Cypress, CA 90630</i> 2026-01554689	OFF CALENDAR based on request for dismissal filed on June 9, 2026.
6.	<i>In Re: 509 Ventaja, Newport Beach, CA 92660</i> 2025-01521014	Before the court are two competing claims to \$74,259.90 in surplus funds (Surplus Funds) from the proceeds of a foreclosure sale of real property located at 509 Ventaja, Newport Beach, California 92660 (Property). The two claims the court received were filed by (1) Radonix, Inc. seeking \$144,999.61, and (2) the California Employment Development Department (EDD) seeking \$18,784.44. The Surplus Funds were deposited with the court on March 17, 2026, by petitioner Prestige Default Services, LLC (Petitioner), and Petitioner was thereafter discharged of any further responsibility for the distribution of the Surplus Funds as provided by Civil Code section 2924j. As such, the only remaining issue in this matter is the resolutions of the competing claims to the Surplus Funds. Civil Code section 2924k establishes the priority pursuant to which the Surplus Funds are to being distributed following the costs and expenses of the foreclosure sale and the satisfaction of the obligation on which the foreclosure sale was based. Specifically, following those two items, the Surplus Funds are to be distributed to any junior lien encumbrances in order of their priority followed by the trustors. (Civ. Code, § 2924k, subd. (a).) "California follows the 'first in time, first in right' system of lien priorities. ([Civ. Code,] § 2897.)" [Citation.] However, that rule is not without exceptions. 'Other things being equal, different liens upon the same property have priority according to the time of their creation' (Civ. Code, § 2897.)" (<i>JP Morgan Chase Bank, N.A. v. Banc of Am. Prac. Sols., Inc.</i> (2012) 209 Cal.App.4th 855, 860.) On April 9, 2026, Radonix and EDD filed a stipulation and proposed order agreeing to the respective priority of their claims, and requesting the court distribute the Surplus Funds in accordance with their stipulation and proposed

		order. Specifically, these two claimants agree EDD's claim has priority over Radonix's claim such that EDD should receive the full amount of its \$18,784.44 claim from the Surplus Funds, and Radonix should receive the balance of the Surplus Funds, or \$55,475.46, which is less than the full amount of Radonix's claim. At the April 16, 2026 hearing to address claims to the Surplus Funds, John Fox appeared and represented he is also a claimant to the surplus funds. Because Mr. Fox had not filed a written claim or presented any evidence to support any claim, the Court continued the hearing and ordered Mr. Fox to file and serve a brief regarding his claim along with declarations of evidence in support of his claim by Friday, May 8, 2026, so EDD and Radonix would have an opportunity to respond. Mr. Fox has not filed any claim nor made any other filing in this case. Similarly, no other party has submitted a written claim other than EDD and Radonix. The court is inclined to order distribution of the Surplus Funds in the manner set forth in the claimants' stipulation and enter the proposed order submitted by EDD and Radonix. All parties, however, should appear for the hearing. The clerk of the court is directed to give notice of this ruling to all parties.
7	Holden vs. Royale Management Group, LLC 2025-01531878	Before the court is the petition of Petitioner David W. Holden (Petitioner) to enforce member rights to books and records under Corporations Code section 17704.10. Petitioner seeks to inspect and copy certain records of respondent Royale Management Group, LLC (RMG). As more fully set forth below, the petition is GRANTED IN PART, DENIED IN PART, and DISMISSED AS TO ONE RESPONDENT. Initially, the court notes Petitioner contends the opposition was not properly served upon him. Petitioner, however, filed a reply that fully addresses the opposition on the merits, and therefore any objection based on the opposition's service has been waived. The court also notes the reply Petitioner filed is 24 pages long, not including the supporting declaration and exhibits. Any reply brief generally is limited to 10 pages. Accordingly, the court has exercised its discretion to review and consider the first 10 pages of the reply and disregard all pages thereafter. Petitioner has named three respondents in these proceedings—RMG and respondents Samuel Lindsey (Lindsey) and Martin Ponce (Ponce). Petitioner, however,

	has only been able to serve two of respondents. Specifically, he has served RMG and Ponce. Those two respondents also appeared in these proceedings by filing an answer and opposing the petition on the merits. Petitioner has not served Lindsey despite having more than six months to do so. Petitioner contends Lindsey has been avoiding service, but Petitioner was unable to make an adequate showing to justify service by alternative means. Given this case is now at its hearing on the merits of the petition and Lindsey still has not been properly served so as to confer jurisdiction over him, the court hereby DISMISSES Lindsey from these proceedings. Any order on the petition will be directed solely to RMG and Ponce. Petitioner brings this petition to enforce his rights as a member of RMG under Corporations Code section 17704.10. As relevant to this case, that statute provides an LLC member with two rights to certain books and records of the LLC. Section 17704.10, subdivision (a) provides, upon request and for purposes reasonably related to the interest of the requesting party as a member, a manager or member in possession shall promptly deliver in writing and at the expense of the LLC, copies of the information identified in section 17701.13(d)(1), (2), and (4) and any written operating agreement. The records identified in those paragraphs are (a) a current list of the full name and last known business or residence address of each member and of each transferee set forth in alphabetical order, together with the contribution and the share in profits and losses of each member and transferee, (b) if the limited liability company is a manager-managed limited liability company, a current list of the full name and business or residence address of each manager, and (c) copies of the limited liability company's federal, state, and local income tax or information returns and reports, if any, for the six most recent fiscal years. Section 17704.10, subdivision (b) provides a member, upon reasonable request and for purposes reasonably related to the person's interest as a member, has the right to inspect and copy during normal business hours any of the records identified in section 17701.13. In addition to the records identified in the previous paragraph, those records include (a) a copy of the articles of organization and all amendments thereto, together with any powers of attorney pursuant to which the articles of organization or any amendments thereto were executed; (b) a copy of the limited liability company's operating agreement, if in writing, and any amendments thereto, together with any powers of attorney pursuant to which any written operating
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	agreement or any amendments thereto were executed; (c) copies of the financial statement of the limited liability company, if any, for the six most recent fiscal years; and (d) the books and records of the limited liability company as they relate to the internal affairs of the limited liability company for at least the current and past four fiscal years. RMG and Ponce (collectively, Respondents) oppose the petition on a number of grounds. First, they argue Petitioner resigned and therefore holds no more than a bare economic interest in RMG. They point to an email Petitioner sent in December 2023 in which he states he formally resigns as a "Managing Member" effective December 31, 2023. Respondents contend this amounted to a dissociation event within the meaning of section 17706.02, subdivision (a), and thereby terminated his status as a member with inspection rights. Not so for a number of reasons. The resignation states Petitioner resigns as a managing member, not that he resigned as a member. More importantly, RMG has continued to issue K-1's and other tax documents that identify Petitioner as holding a one-third membership interest in RMG. Respondents also have acknowledged in these proceedings and other litigation involving the parties that Petitioner is still technically a member of RMG. Section 17704.10, subdivision (h), also states any waiver of the rights that code section provides is unenforceable. Accordingly, Petitioner has presented sufficient evidence showing he is a member of RMG with rights under section 17704.10 and Respondents have not overcome that showing or otherwise established the contrary. Next, Respondents emphasize the requirement that any request for records under section 17704.10 must be reasonably related to Petitioner's interests as a member of RMG. Respondents contend Petitioner's requests do not meet this standard. Instead, Respondents assert Petitioner's request is an overbroad discovery request unrelated to any interest as a member and seeks documents for use in various lawsuits pending between the parties. To support this, Respondent's point to communications in the San Diego lawsuit relating to various discovery requests and disputes relating to some of the same documents. Specifically, they point to statements by Petitioner's counsel in that lawsuit stating Petitioner would stipulate to a protective order as long as there is a carve
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		out allowing the use of the documents in litigation among the parties. Petitioner states he seeks the requested documents to enable him to properly complete his taxes for the last couple years because Respondents have provided him with incomplete K-1s and refused him access to other financial records he needs to confirm the limited information they have provided and otherwise properly file his taxes. Petitioner, however, does not directly deny he also may seek the documents for use in other litigation. Petitioner’s proffered reason relating to taxes is a valid and legitimate reason for seeking the requested documents. The court also notes Petitioner is only seeking financial and membership records. He is not seeking any sort of documents that potentially would amount to proprietary information or trade secrets. For example, he does not seek customer lists, business plans, marketing materials, or anything else of that nature. Moreover, the litigation among the parties relates, at least in part, Petitioner’s interest as a member of RMG. In support of their argument, Respondents cite <i>Parker v. Tract No. 7260 Association, Inc.</i> (2017) 10 Cal.App.5th 24. That case involved an inspection request by a member of a nonprofit mutual benefit corporation under an entirely separate statutory scheme, but the governing statute in that case nonetheless has a similar limitation—i.e., the member’s right of inspection was limited to purposes reasonably related to the member’s interests as a member. (<i>Parker</i>, at p. 31.) The <i>Parker</i> court explained, “‘This limitation is always subject to judicial review to determine whether a lawful purpose exists.’ [Citation.] A corporation has the burden of proving that the member ‘will allow use of the information for purposes unrelated to the person’s interest as a member.’ [Citation.] On appeal, we review the trial court’s order for substantial evidence. [Citation.] Mere speculation that the member will use the information for an improper purpose is not sufficient to nullify inspection rights; any suspicion must be based on adequate facts in order to justify denial of inspection. [Citation.]” (<i>Parker, supra</i>, 10 Cal.App.5th at pp. 31-32.) Although <i>Parker</i> provides valuable insight into the governing standard it is readily distinguishable on its facts. There, the trial court agreed with the corporation’s conclusion the member sought the record for an improper purpose because the member wanted the records to
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		provide to a third-party nonmember for the third party to use in ongoing litigation with the corporation. The member was not a party to that litigation. (<i>Parker, supra</i>, 10 Cal.App.5th at pp. 28-33.) Here, Petitioner is seeking the records for his own use, not that of a nonparty. The court finds Petitioner has a proper purpose for the request, and the potential that Petitioner may also use the records in ongoing litigation among the parties is not sufficient to defeat his inspection rights because that other litigation relates, at least in part, to Petitioner's interest as a member. Respondents have failed to meet their burden to establish an improper or impermissible purpose. Respondents next contend Petitioner's request goes beyond what he is entitled to under section 17704.10. On this point, the court agrees with Respondents to a limited degree. With the exception of the category of documents identified in section 17701.13, subdivision (d)(7), the documents to which a member is entitled to access under section 17704.10 are fairly specific. That one broad category entitles a member to inspect the books and records of the limited liability company as they relate to the internal affairs of the limited liability company for at least the current and past four fiscal years. Neither side offers any argument to interpret what this category covers. Moreover, as stated above, an LLC is only required to provide a member with copies of the records identified in section 17701.13(d)(1), (2), and (4). As for the records identified in section 17701.13(d)(3), (5), (6), and (7), the member is only entitled to inspect and copy the records during normal business hours as maintained in the LLCs records. By the petition, Petitioner seeks the following: (1) tax returns, (2) K-1's, (3) basis schedules, (4) CPA work papers, (5) QuickBooks files, (6) general ledger, (7) bank statements, (8) payroll records, (9) capital accounts, (10) contribution/distribution records, (11) governance materials, (12) Secretary of State filings, and (13) communications concerning allocations and membership. Most of these categories fall within the categories identified in section 17701.13. The ones that do not are the CPA work papers and the communications concerning allocations and membership. The court finds these two categories are not covered by section 17701.13 and the final one also is much too vague. The court also notes section 17701.13 puts specific time limits on some of the categories. Accordingly, consistent with those time limits, the court finds Petitioner is entitled to either copies
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	or to inspect and copy on his own the documents identified in Petitioner’s category nos. (1)-(3) and (5)-(12) depending on whether they are covered by section 17704.10(a) or 17704.10(b). In terms of any copies that are produced or records that are made available for inspection, they are to be provided in the manner they are kept in the ordinary course of business. Respondents are not required to do any more than that. The petition therefore is GRANTED as to the categories and in the manner described in this paragraph, but DENIED as to any documents or requests that go beyond what is described in this paragraph. Petitioner also seeks an order requiring Respondents to preserve various records. Petitioner, however, cites no authority to support that request. This is a petition for copies of or access to records of an LLC under section 17704.10. That code section does not authorize any sort of preservation or spoliation order by this court. The parties all have their preservation obligations as parties to other ongoing litigation and to the extent there is any issue regarding the preservation of documents that is beyond the scope of this case and should be raised in the other cases. Accordingly, Petitioner’s request for a preservation order is DENIED. Respondents request that, to the extent the court grants the petition as to any documents, the court also issue an appropriate protective order limiting the use of the documents. Neither section 17704.10 nor any of the other authorities Respondents cite, however, support or authorize issuance of such an order. In <i>Perry v. Stuart</i> (2025) 111 Cal.App.5th 472, the court authorized redaction of certain records that were produced pursuant to section 17704.10. The <i>Perry</i> court, however, authorized the redactions under the California Trade Secrets Act, finding it was a more recent and specific statute and its provisions authorized or required the redactions. The <i>Perry</i> court did not hold section 17704.10 authorized redactions or protective orders to protect any specific type of information. Here, Respondents have not shown any of the requested documents include trade secrets. Respondents also cite <i>Havlicek v. Coast-To-Coast Analytical Services, Inc.</i> (1995) 39 Cal.App.4th 1844, 1855-1856. <i>Havlicek</i>, however, involved a different statutory scheme with different provisions. Specifically, <i>Havlicek</i> held a trial court may impose limitations on an order compelling a corporation to comply with a director’s absolute inspection rights under Corporations Code sections 1602 and 1603. Significantly, in authorizing a director to bring a court case
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		to enforce their inspection rights, section 1603 specifically states in granting the director's request the superior court may impose "just and proper conditions" on its order. The <i>Havlicek</i> court relied on this language as the basis for the authority to impose conditions, such as a protective order. Here, section 17704.10 does not include any language supporting the imposition of a protective order. Section 17704.10, subdivision (f), is the statutory provision that allows a member to bring a court case to enforce their inspection rights. That subdivision provides, "In addition to the remedies provided in Sections 17713.06 and 17713.07 and any other remedies, a court of competent jurisdiction may enforce the duty of making and mailing or delivering the information and financial statements required by this section and, for good cause shown, extend the time therefor." Nothing in this language authorizes the court to impose conditions. Moreover, Respondents have not convinced the court of the need for a protective order. Accordingly, Respondents' request for a protective order is DENIED, but Petitioner is cautioned that the misuse of the documents and information he obtains may subject him to liability for any damages or injuries he might cause. Finally, Petitioner's request for fees and costs is DENIED. Section 17704.10, subdivision (g), authorizes a court to award reasonable expenses and attorney fees if the court finds the failure of the limited liability company to comply with the requirements of Section 17704.10 is without justification. Here, Petitioner is self-represented and therefore has not incurred any attorney fees. Petitioner also has not presented any evidence or specific request for any expenses or costs. Moreover, the court finds there was a legitimate dispute about the access to the records given there was no specific authority on point regarding this specific statute. Based on the foregoing, Respondent is ordered to produce copies of the records governed by section 17704.10, subdivision (a), and provide Petitioner access during normal business hours to the records governed by section 17704.10, subdivision (b), within 15 days of this ruling. Petitioner is ordered to give notice of this ruling.
8.	City of Orange v. Leon 2008-00114884	CONTINUED TO JUNE 25, 2026, as stated in the June 15, 2026 minute order

9.	State Farm General Insurance Company vs. Lambert 2012-00584705	Before the court is the motion of defendants Kelly Michelle VanSchaack and James Nathan VanSchaack (collectively, Defendants) to vacate void judgment. As more fully set forth below, the motion is DENIED WITHOUT PREJUDICE. By this motion, Defendants seek to vacate the default judgment entered against them on May 24, 2013, and renewed on May 5, 2023. Defendants bring this motion under Code of Civil Procedure section 473, subdivision (d), claiming the judgment is void because they were never properly served with summons and complaint and only became aware of the case years later after judgment was entered. The motion, however, is defective in at least two ways. First, the proof of service showing the motion was allegedly served on plaintiff State Farm General Insurance Company (Plaintiff) is defective and Plaintiff has not filed any opposition to demonstrate it actually received the motion or otherwise waived the service defect on the motion. The proof of service is defective because it is signed by defendant Kelly Michelle VanSchaack. Service must be made by and the proof of service signed by a person who is not a party to the action. (See, e.g., Code Civil Proc., § 1013a(3).) The proof of service attached to the motion recognizes this requirement by stating the person signing it is “not a party to this action.” That statement, however, is clearly false in this case. Moreover, the proof of service purports to be by mail pursuant to ordinary business practices, but the proof lacks many of the statements required by Code of Civil Procedure section 1013a(3) for a valid proof of service pursuant to ordinary business practices. Indeed, section 1013a(3) sets forth several statements that must be included in a valid proof of service and many of them are lacking. To the extent the declarant personally deposited the document in the mail, a different form of proof of service is required. Second, Defendants fail to demonstrate this motion is timely. Defendants claim the judgment in this action is void based on extrinsic evidence—i.e., their declarations stating the addresses lists on the proofs of service are not valid and denying they ever received the summons and complaint—rather than void on its face. The Supreme Court recently did away with the requirement that such a motion must be brought within two years, but the Supreme Court left undisturbed that a defendant seeking such relief must still act with reasonable diligence upon learning of the judgment. (<i>California Capital Ins. Co. v. Hoehn</i> (2024))
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		17 Cal.5th 207, 225-226 & fn. 11.) Here, Defendants do not state when or how they learned of this case and the judgment. They simply state the “only became aware of this case years later, after a judgment had already been entered.” Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. The court clerk is directed to give notice of this ruling.
10.	Flight Phase I Owner, LLC v. Incipio, LLC 202301367887	CONTINUED TO JUNE 24, 2026, to be heard in Department C61 as stated in the June 5, 2026 minute order.
11.	Melzter vs. Cardiology Specialists of Orange County 2025-01530605	Before the court is the motion to amend the judgment to add post-award prejudgment interest filed by petitioners Dr. Paul B. Melzter and Paul Meltzer, M.D., Inc. (collectively, Petitioners). As more fully set forth below, the motion is DENIED because, although the court agrees with the authorities and arguments Petitioners make, the court finds it lacks jurisdiction to amend the judgment and award pre-judgment interest at this time because respondent Cardiology Specialists of Orange County (Respondent) have filed a notice of appeal that divests this court of jurisdiction and the award of prejudgment interest is not a collateral matter in the nature of costs or attorney fees. Petitioners request the court amend the judgment to add prejudgment interest from the date the underlying arbitration award was issued on November 5, 2025, through to the date judgment was entered on March 27, 2026. Petitioners do not seek prejudgment interest on any sums prior to the date the award was issued, which the arbitrator specifically refused to grant. The law is clear that a successful petitioner in arbitration is entitled to recover prejudgment interest from the date of the arbitration award until the date judgment is entered on that award. The statutory authority for this award of prejudgment interest is Civil Code section 3287, subdivision (a). (<i>Britz, Inc. v. Alfa-Laval Food & Dairy Co.</i> (1995) 34 Cal.App.4th 1085, 1106-1107 (<i>Britz</i>); <i>Pierotti v. Torian</i> (2000) 81 Cal.App.4th 17, 27 (<i>Pierotti</i>); <i>County of Solano v. Lionsgate Corp.</i> (2005) 126 Cal.App.4th 741, 753.) As the <i>Britz</i> court explained, “[A petition to confirm an arbitration award does not seek] an award of damages and attorney fees on the original contracts [or underlying

		claims]. That underlying dispute was the subject of the arbitration, and had been concluded by the time of the superior court petition to confirm the award. The arbitration award itself resulted in a new and fixed liability (see Code Civ. Proc., § 1287.6). Regardless of the individual elements that comprised that liability, respondents were entitled to payment of the fixed sum upon issuance of the award. [¶] The arbitration award was the contractual equivalent of a judgment in respondents' favor. In the context of a judicial judgment, it is clear that interest after judgment accrues as to the entire award, including attorney fees. (See 8 Witkin, Cal. Procedure (3d ed. 1985) Enforcement of Judgments, § 40(d), p. 58.) The prejudgment interest awarded respondents served the same purpose here. Although the interest was pre-'judicial judgment,' it was post-'contractual judgment.' Any result that denied respondents this post award interest would punish them for using arbitration instead of the court system to resolve their dispute with appellants." (<i>Britz, supra</i>, 34 Cal.App.4th at p. 1107.) Respondent argues the arbitrator's refusal to award prejudgment interest bars all interest including the post-award, prejudgment interest Petitioners seek here. This argument, however, fails to properly differentiate between pre-arbitration award interest and post-arbitration award, but prejudgment interest. Indeed, it appears the arbitrator only considered and denied prejudgment interest on the sums the arbitrator determined Petitioners were owed for the pre-award period. The award is silent as to post-award, prejudgment interest. This same argument was considered and rejected by the court in <i>Pierotti</i>: "[I]n our view, the arbitrator never considered or ruled on the precise issue that Pierotti raises here: whether he is entitled to interest under Civil Code section 3287, subdivision (a) for the period between the award and the time the court entered judgment confirming the award. Pierotti made that request for the first time in his petition to confirm the award. We simply do not believe the issue was before the arbitrator, or that he decided the issue. [Footnote omitted.] Here, Pierotti is not asking for an award of interest 'upon the unliquidated contract claims [that were before the arbitrator] . . . but solely upon the arbitration award from the date of the award.' [Citation.]" (<i>Pierotti, supra</i>, 81 Cal.App.4th at pp. 27-28.) An award of the prejudgment interest sought here does not result in a modification or amendment of the arbitration award.
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	Respondent further argues the requested interest is barred as Petitioners did not request such relief in their opening or closing arbitration briefs. "However, it is well established that, in a contested action, prejudgment interest may be awarded, if the plaintiff is entitled to it, even though the complaint contains no prayer for interest. [Citation.] 'The rationale of these cases is the simple proposition that in a contested action on a money claim which can be made certain by calculation, the matter of interest for the withholding of the money is "embraced within the issue" (Code Civ. Proc., § 580) and the appropriate interest may be allowed even though not prayed for' [Citation.] We can see no reason to distinguish between the award of interest on a complaint and on a petition to confirm an arbitration award." (<i>Britz, supra</i>, 34 Cal.App.4th at p. 1106.) The court also agrees with Petitioners' argument regarding the applicable interest rate. Specifically, Petitioners argue 10 percent per annum is correct under Civil Code section 3289, subdivision (b), but Respondent argues 7 percent per annum under Civil Code section 3287. Although there were separate issues before the arbitrator of breach of a written partnership contract and quantum meruit based upon Petitioners' post-disassociation independent contractor work, "[t]he arbitration award itself resulted in a new and fixed liability [citation]. Regardless of the individual elements that comprised that liability, respondents were entitled to payment of the fixed sum upon issuance of the award. [¶] The arbitration award was the contractual equivalent of a judgment in respondents' favor. In the context of a judicial judgment, it is clear that interest after judgment accrues as to the entire award. . . . [Citation.] The prejudgment interest awarded respondents served the same purpose here. Although the interest was pre-'judicial judgment,' it was post-'contractual judgment.'" (<i>Britz, supra</i>, 34 Cal.App.4th at p. 1107.) The court finds the 10 percent per annum rate under Civil Code section 3289, subdivision (b), applies. Applying that rate Petitioners receive an award of \$15,344.86 in prejudgment interest on the \$394,427.61 award at 10 percent per annum for the 142 days between issuance of the award and entry of judgment. Unfortunately, there is a significant question here as to whether the court currently has jurisdiction to award this prejudgment interest. Petitioners' original and amended petition to confirm the arbitration award checked the box to seek interest from the date of the arbitration award.
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		Neither Petitioners’ petitions nor any brief Petitioner filed, however, cited any of the foregoing authorities regarding prejudgment interest on arbitration awards, provided any interest calculations, or requested any specific amount of prejudgment interest. Similarly, the proposed judgment Petitioner later submitted left a blank for prejudgment interest, but again provided no calculations or specific request. As such, in entering the award, the court stated it had not been provided with any authority, evidence, or calculations and therefore an award of prejudgment interest, in any, would need to be made by a later motion. The court entered the award on March 27, 2026. Petitioners then filed and served this motion on April 10, 2026. On May 26, 2026, Respondent filed its notice of appeal from the judgment. “It is well established that prejudgment interest is not a cost, but an element of damages.” (<i>North Oakland Med. Clinic v. Rogers</i> (1998) 65 Cal.App.4th 824, 830.) Based on that characterization the North Oakland court concluded a “cost bill is not an appropriate vehicle for requesting interest under section 3287. In our view, prejudgment interest should be awarded in the judgment on the basis of a specific request therefor made before entry of judgment.” (<i>Ibid.</i>) The court went on to explain, “It further appears that, at the latest, a request for prejudgment interest under section 3287 may be sought as part of a motion for new trial pursuant to Code of Civil Procedure section 657, on the grounds of ‘[e]xcessive or inadequate damages.’ [Citation.]” (<i>Ibid.</i>) Accordingly, Petitioner should have sought this award of interest before entry of judgment, but that is not fatal to their request. Although not a motion for new trial, the court finds the current post-trial motion generally could be an acceptable way to request this prejudgment interest. The fatal problem is that Respondent has filed a notice of appeal. Because prejudgment interest is an element of damages, the court’s action awarding that interest requires an amendment of the judgment, and such an award and amendment is not in the nature of a costs or attorney fee award, which are considered collateral to the judgment and allowed despite an appeal from the underlying judgment. The filing and perfecting of an appeal divest the trial court of power or jurisdiction to act on matters “embraced in” or “affected by” the appealed judgment. Jurisdiction over the appealed matters shifts to the court of appeal and is terminated in the trial court; and the trial court's power to
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		enforce, vacate, or modify the appealed judgment or order is suspended while the appeal is pending. (See <i>Blizzard Energy, Inc. v. Schaefers</i> (2021) 71 Cal.App.5th 832, 842, fn. 4; <i>Varian Med. Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 196-198.) Further trial court proceedings in contravention of the stay are in excess of the court's jurisdiction in its "fundamental sense" and thus void. (<i>Varian Med. Systems, Inc. v. Delfino</i> (2005) 35 Cal.4th 180, 198-199.) Based on the lack of jurisdiction, the court DENIES the motion. This ruling is based on the assumption Respondent has otherwise perfected the appeal. For example, Respondent has not only filed the notice of appeal, but also posted any bond that is required. The court will hear from the parties on this issue at the hearing. Respondent's counsel is ordered to give notice of this ruling.
12.	Alamour vs. Regents of the University of California 2025-01492598	Before the court is the joint motion of defendants County of Orange, Regents of the University of California, City of Huntington Beach, and City of Santa Ana (collectively, Defendants) to designate case as complex. Although plaintiffs opposed Defendants' ex parte application to advance the hearing on this motion, plaintiffs have not filed any opposition to this motion. The designation of a case as complex is governed by California Rules of Court, rule 3.400, et seq. Rule 3.400(a) provides, a "'complex case' is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel." Rule 3.400(b) establishes a nonexclusive list of factors the court must consider in determining whether a case is complex. The factors include "whether the action is likely to involve: [¶] (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; [¶] (2) Management of a large number of witnesses or a substantial amount of documentary evidence; [¶] (3) Management of a large number of separately represented parties; [¶] (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or [¶] (5) Substantial postjudgment judicial supervision."

		The factors stated in rule 3.400(b) are not an exhaustive list of the factors a court must consider, nor must all the identified factors be present to deem a case complex. Rather, the court must consider the totality of the circumstances presented in the particular case and what is needed to manage and potentially try the case. The factors identified in rule 3.400(b) are simply illustrations of the type of considerations the court must evaluate and perhaps even just one of those factors could justify a complex case designation in an appropriate case. (See <i>Ford Motor Warranty Cases</i> (2017) 11 Cal.App.5th 626, 641, <i>First State Ins. Co. v. Superior Court</i> (2000) 79 Cal.App.4th 324, 332.) Rule 3.400(c) identifies the following types of claims as provisionally complex: “(1) Antitrust or trade regulation claims; [¶] (2) Construction defect claims involving many parties or structures; [¶] (3) Securities claims or investment losses involving many parties; [¶] (4) Environmental or toxic tort claims involving many parties; [¶] (5) Claims involving mass torts; [¶] (6) Claims involving class actions; or [¶] (7) Insurance coverage claims arising out of any of the claims listed in (c)(1) through (c)(6).” “With or without a hearing, the court may decide on its own motion, or on a noticed motion by any party, that a civil action is a complex case or that an action previously declared to be a complex case is not a complex case.” (Cal. Rules Ct., rule 3.403.) Here, defendant County of Orange attempted to file a counter designation with the first appearance to designate this matter as complex, but the clerk’s office erroneously rejected that filing. Although the filing of a counter-designation does not automatically result in the case being deemed complex, that filing should have been accepted, and based on that filing, the case would have been reviewed by a complex department judge to evaluate whether the case is complex. As stated above, plaintiffs have not filed any opposition to the motion and it appears they may have attempted to stipulate to the case being designated as complex. The lack of an opposition or even a stipulation does not automatically result in the case being designated complex. The court must nonetheless review and evaluate the case to determine whether the relevant criteria are satisfied regardless of the parties’ agreement.
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		This case involves claims by 12 separate plaintiffs against four governmental entities based on the actions of those entities' law enforcement officers. Although plaintiffs are represented by the same counsel, each defendant is represented by a different law firm or attorney office. The court also accepts the representation the number of defendants is likely to grow once discovery commences and plaintiffs are able to identify individual law enforcement officers who were involved in the underlying events. This case involves a variety of civil rights and other related claims concerning how law enforcement treated protestors during and after a large protest on the campus of the University of California, Irvine. All defendants have pending demurrers to the original complaint that will pose a number of novel issues and result in a series of amended pleadings and additional demurrers. These issues, pleadings, and motions will benefit from management by a judge with complex case authority. This case is likely to involve a large number of witnesses—especially given the number of plaintiffs asserting individual claims—and a large volume of documents, videos, etc. Discovery in this case will significantly benefit from the supervision of a judge with complex case authority. When this case and the foregoing factors are viewed in their entirety, the court is satisfied this case warrants a complex case designation under rule 3.400. Accordingly, the motion is GRANTED. At the time of the hearing, the court will select and assign the case to a complex judge. Defendants will be ordered to give notice of this ruling.
13.	Mann vs. Nice Sheen International, Inc. 2024-01403670	Before the court are the following motions by plaintiffs and judgment creditors Jeffrey Mann and Suzette Mann (collectively, Creditors): (1) motion for attorney fees incurred to enforce judgment, and (2) motion to compel defendant and judgment debtor Nice Sheen International, Inc. (Debtor) to respond to special interrogatories, set one, and request for monetary sanctions. <u>Motion No. 1: Motion for Attorney Fees</u> On September 25, 2024, the court entered judgment in favor of Creditors and against Debtor. (ROA 28.) Creditors state they have made multiple attempts to enforce the judgment, thereby expending additional attorney fees and costs, but have not been successful as of yet. Attorney fees and costs are recoverable when enforcing a judgment under Code of Civil Procedure sections 685.040 and 1033.5,

subdivision (a)(10)(A). Attorney fees also are recoverable in this action under Civil Code section 1717.

Creditors request a total of \$56,876.80 in attorney fees and costs related to enforcing the judgment. This comes from 101.4 hours at \$520/hr. and \$4,148.80 in costs. (Rader Decl. ¶ 9, Ex. 5.) The court finds these sums reasonable. Although Creditors provide a breakdown of the costs as Exhibit 5, they do not provide a breakdown of attorney fees other than stating the total number of hours and the requested hourly rate. Nonetheless, because attorney fees are recoverable in this case as a matter of right based on the prior award and the parties' contract, a motion was not required; a memorandum of costs is sufficient, which thereby places the burden on Debtor to bring a motion to tax the costs, including attorney fees. (Code Civ. Proc., §§ 685.070.)

Based on the foregoing, the motion is **GRANTED** and the court awards Creditor additional attorney fees in the amount of \$56,876.80 as against Debtor.

**Motion No. 2: Compel Responses
to Special Interrogatories**

Creditors served special interrogatories, set one, on Debtor. (Rader Decl. ¶ 2, Ex. 1.) Debtor failed to serve any responses to the special interrogatories by the date the motion was filed. (Rader Decl. ¶¶ 3-4, Ex. 2.) The responses are late, and Debtor has waived any objections thereto. (Code Civ. Proc., § 2030.290, subd. (a).) Creditors' motion is proper to compel Debtor's initial objection-free responses to the special interrogatories. (Code Civ. Proc., § 2030.290, subd. (b).)

Creditors also request monetary sanctions against Debtor and its attorneys of record, which are permissible. (Code Civ. Proc., §§ 2023.010, 2030.290, subd. (c).) Creditors request a reasonable \$1,460 in monetary sanctions on this motion. (Rader Decl. ¶ 6.)

Based on the foregoing, the motion is **GRANTED**. Debtor is ordered to serve code-complaint responses, without objections, to the special interrogatories within 20 days of service of written notice of the ruling. The request for monetary sanctions also is **GRANTED**. Creditors are awarded \$1,460 in attorney fees as against Debtor and its counsel of record, jointly and severally, payable to Creditors' counsel within 30 days of service of notice of this ruling.

		Creditors' counsel is ordered to give notice of these rulings.
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